

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

Jane Smith, Plaintiff,

v.

Global Tech Inc. and John Roe, Defendants.

Case No: 2024-CV-005678

Filing Date: February 20, 2024

Counsel for Plaintiff: Morrison & Foerster LLP

COMPLAINT FOR BREACH OF CONTRACT AND WRONGFUL TERMINATION

Plaintiff Jane Smith, by and through her counsel, Morrison & Foerster LLP, brings this action against Defendants Global Tech Inc. and John Roe for breach of employment contract and wrongful termination in violation of applicable law.

Plaintiff was employed by Global Tech Inc. as a Senior Software Engineer from January 15, 2020 until her termination on December 10, 2023. Her termination was without cause and violated the terms of her written employment agreement.

ISSUES AND ALLEGATIONS

1. Defendant breached the employment agreement by terminating Plaintiff without the required 90-day notice period or equivalent compensation in lieu of notice.
2. Defendant retaliated against Plaintiff for reporting accounting irregularities to the Audit Committee on November 5, 2023.
3. Defendant owes unpaid bonuses and stock options that vested prior to termination.

PROCEDURAL HISTORY

Plaintiff filed an EEOC charge on January 8, 2024. The EEOC issued a Right to Sue letter on February 1, 2024. Plaintiff timely filed this complaint within 90 days.

RELIEF SOUGHT

WHEREFORE, Plaintiff respectfully requests:

- (a) Compensatory damages of \$750,000;
- (b) Punitive damages as allowed by law;
- (c) Lost wages, benefits, and stock options;
- (d) Attorneys' fees and costs;
- (e) Such other and further relief as the Court deems just.

Hearing scheduled for April 15, 2024 at 9:00 AM.

Motion to dismiss filed by Defendant on March 1, 2024.

Plaintiff's opposition due March 22, 2024.